

From the Shadows: Combating Gender-Based Violence and Femicide in Mexico

Policy Brief

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Target: Andres Manuel Lopez Obrador, President of Mexico

Executive Summary:

Mexico has been no stranger to the negative implication of gender based violence. For years the issue of toxic masculinity has become normalized within society ultimately allowing for the issue of gender based violence and femicide to go unnoticed. In recent years, there has been a spike in femicide, domestic violence, and gender-based violence which has young girls and women in a constant state of fear. With increased levels of violence against women in both the public and private spheres, organizations such as Nuestras Hijas de Regreso a Casa have made it their mission to raise awareness and protest against gender based violence and femicide.

Evidently, the Mexican government has failed to effectively address the concerns of girls and women who have sparked protests to demand action for the protection of all girls and women who have become victims. Even with increased cases, there have been minimal policy discussions that focus on the protection of girls and women. It is necessary to propose policy changes that provide support for victims, strengthen legal frameworks that target femicide, and

the need for government collaboration with organizations that work on addressing the issue of femicide in Mexico.

Statement of the issue

The issue of female homicides and gender-based violence is nothing new in Mexico. From the early 1990s up until now, there have been increased cases of gender based crimes that have continued to be overlooked. Over the years, female homicides have increased significantly, but from 2001 to 2017 indigenous municipalities have seen higher rates of violence than non indigenous municipalities (Frias, 2023; 11). With so many gender based crimes being committed, the Mexican government is unable to receive accurate data to show just how normalized such crimes have become throughout the years due to underreporting or lack of reporting violent crimes. Such increased violence can be seen as the result of structural inequalities and deeply rooted misogyny. Gender based violence against women has been prominent in Mexico for decades. The issue can be seen as the result of gender inequality, machismo, domestic violence, and issues within Mexico's criminal justice system.

In recent years, Mexican officials have begun to recognize the issue of femicide and violence that plague the country. One issue that is prominent in Mexico can be the limited laws that protect women and girls. At this time, local lawmakers in Mexico City have approved legislation to suspend parental rights for men who are being investigated for femicide (Reuters, 2023). Though the issue of femicide is prominent there are minimal policy discussions that focus on the protection of girls and women. Even with the increased number of cases there has been little government involvement to address the issue. On average about ten girls or women are killed on a daily basis. Considering that gender based violence is prominent in Mexico, such acts of hate against women are a human rights violation that activists strive to address (*Data Matters*,

n.d.). Many regions throughout Mexico have seen increased rates of homicide for women can be represented by a 33.3 homicides per inhabitants (Falomir, 2022; 509). In recent years, the media has begun to shed light on concerns of gender based violence and femicide by publishing newspaper articles, posting on social media, and presenting information regarding the issue to the general public. Female homicides in Mexico have gained not only national media coverage but also international coverage that have shed light on the issue.

The continuity of crimes against women and girls in Mexico continues to persist to this day. One organization that aims to address the issue of femicide in Mexico is “Nuestras Hijas de Regreso a Casa” (May Our Daughters Return Home). This organization is a non government organization (NGO) that was founded after an increase in disappearances and murders of women in Chihuahua, MX. It provides legal support for families whose daughters have disappeared along with the physical and mental health issues that affect families. The organization also works with the government by addressing the concerns of increased levels of femicide while seeking to allocate resources for women. Nuestras Hijas de Regreso a Casa Organization, has fought to shed light on the issues of violent crimes against women that have been evident for decades. After examining the historical context of gender based violence and the increasing rates of female homicides, I present a new policy recommendation from the Organization Nuestras Hijas de Regreso a Casa that adapts Spain’s Organic Laws on Integrated Protection Measures against Gender Violence presented in December 2004. In this policy recommendation there will be an emphasis on the need for comprehensive legislation, integration of support systems and services for victims, specialized courts, and prevention programs that educate individuals about gender-based violence.

History of the Problem and Current Context

In Mexico's rich history lies the haunting reality that gender-based violence and female homicide have persisted for decades. Mexico is known for its vibrant culture and diverse communities that have been presented with complex social, economic and political implications (*Sanchez & Pesce, 2022*). The nation has developed an environment that fosters disproportionate levels of violence that plague women and girls throughout Mexico which has caused fear to arise in regions such as Ciudad Juarez where there has been significant increases in violence towards women and girls (Rodríguez et al., 2020; 9). In order to understand the reality of violence towards women, it is important to understand the historical context of Mexican society and how misogyny and domestic violence have become normalized thus allowing for gender-based violence to prevail.

When looking at how Mexican society is structured, it is evident that violence takes on many forms such as sexual harassment, domestic violence, human trafficking and the killing of people solely based on their gender. The aspect of gendered violence is deeply rooted in societal norms and cultural attitudes towards women. This can be seen in history as Mexico saw the rise of feminism through the Zapatista movement that arose in 1994. The aim of the movement was to shed light on how Mexican society has deep rooted colonialism and racism that prevails. In the article, "Decolonizing and fronting Femicide: Feminism in Mexico," the author argues that Mexico's national development has been influenced by colonialism since they view indigenous people as passive victims which has led indigenous women to reject the label of feminism (*Decolonizing and Confronting Femicide: - ProQuest*). The aspect of feminism can be seen through social movements that acknowledge interventions as a form of oppression. That is to say, intersectionality within feminism aims to address the disproportionate relationships among women and how there are various aspects that influence social structures.

When looking at more recent events regarding gender-based violence and the increase in femicide rates, one case that has been significantly addressed on an international scale has been the case of Debanhi Escobar, an 18 year old law student whose last photograph haunts women and girls throughout Mexico. Her case became extremely popular because of the brutality of her case. She was kidnapped and later found murdered in an underground water tank which also led investigators to find five other young women (*Reuters, 2023*). This case became a symbol of anger for women's rights activists in Mexico especially since there are approximately 10 women murdered per day. Debanhi's death sparked protests which also led to her body being reexamined by medical examiners to find results regarding her cause of death. What was interesting about Debanhi's case was that the results of her medical examination showed that the original autopsy concluded that she had been sexually assaulted and murdered. Her death was not caused by accident since her belongings were found scattered throughout several water tanks. The case of Debanhi Escobar is meant to address the concerns of women in Mexico who fear for their safety on a regular basis. In order to address the concerns of women, it is necessary to draw attention towards common gender based violence and to educate individuals within society how damaging gender stereotyping and machismo can be for women and girls.

In instances of gender-based violence, acid attacks have become a rising issue not only in Mexico but all over the world which raises concerns regarding risk and vulnerability of women. From a sociological perspective, individuals within society are not isolated from social environments which can allow for social factors such as power dynamics and cultural norms to shape how people behave. The interconnection between cultural norms and power dynamics emphasizes how underlying social factors can contribute to gender based violence and gender inequality. When looking at *Rape, Culture, and Social Representations*, Reyes-Sosa draws

attention towards how rape culture “legitimizes cultural beliefs supporting male violence against women, ‘including the idea that this violence is a fact of life, that there is an association between violence and sexuality, that men are active while women are passive, and that men have a right to sexual intercourse’” (Reyes-Sosa p. 32 as cited by Phipps et al., 2018, p. 1). This emphasizes how women have become accustomed to ideologies that plague the image of women and allow for the justification of violence to thrive. In other cases of violence against women, acid attacks have become a common form of violence especially in cases of domestic abuse. One example of this can be seen with Carmen Sanchez who was attacked by her ex partner who escaped punishment after spraying Carmen with acid as a form of punishment (CBS News, 2022). Carmen’s case presents how there is a lack of regulations for perpetrators who have inflicted severe harm onto their victims. The lack of attention and punishment demonstrates the need for policy reform that is necessary not only to educate individuals within society about gender-based crimes but also on the need for support systems for victims.

Critique of Policy Options

Though the topic of gender-based violence and femicide has been prominent for years, the Mexican government has done very little to implement and enforce policies that address the concerns of women. In a way this can be seen through the inability to provide necessary resources to women, increased corruption, or lack of priority. When looking at the rates at which individuals have reported crimes in Mexico, there have been initiatives created to push for increased data collection of acts of violence towards women through the adoption of laws and the creation of government agencies that deal with disappearances. This slow increase in the development of government involvement was created after domestic and international actors became concerned by underreporting (Anaya-Muñoz, 2023). When looking at recent ways that

the Mexican government has addressed the concerns of women, they have yet to reform laws to help with minimizing gender based violence and female homicide rates. One aspect of policy implementation that has been implemented in order to address gender based violence and domestic violence through the suspension of their parental rights for men being investigated for femicide which is the first legal sanction for responses on such acts of violence (*Reuters, 2023*). Monzón law was approved by legislation after Cecilia Monzón was shot dead and as a result her case also led to sanctioning acid attacks up to 40 years in prison. Mexico also faces concerns regarding acid attacks which tend to result from personal relationships. That is to say, there are underlying factors that contribute to the motivations for acid attacks. This can be seen as a result of deep rooted cultural aspects such as machismo, gender inequality, and lack of legal involvement from local officials. At the hands of perpetrators, such acts of violence can be considered punishment towards their victims, a form of control, or even to assert their dominance. Such attacks evidently have physical and psychological effects that are irreversible. The concerns for gender based violence and femicide are in need of more than just low level policies that barely have implications on perpetrators (Emerson, 2022; 174,175). There is a need for more reform that can help women combat the issue of femicide and gender based violence.

With the rise of gender-based violence the Mexican government has been faced with pressure from activists and advocates to address the human rights violations of women. With rise of pressure from organizations the Mexican government was inclined to push for general laws regarding disappearances of women while also creating government agencies that would promote victims rights and disappearances yet even when reaching an agreement to move forward the government pulled back from the agreement. Evidently, the Mexican governments lack of understanding in regards to the severity of the issue of gender-based violence and the

significance of reporting such crimes demonstrate the failure to effectively address the scope of the issue that continues to grow. There is a need to create policies that will mobilize support for reforming victims rights. The increasing levels of recorded data for gender-based violence and femicide is significant information that needs to be addressed not only within society but within the government in order to create policies that protect the citizens of Mexico while also punishing the perpetrators who commit such heinous acts. Nongovernmental actors have become a crucial part of the movement towards addressing gender-based crimes since it provides a report of crime rates that the Mexican government has failed to produce. This unwillingness to produce data that reflects the increasing rates of disappearances, gender-based crimes, and harassment should be seen as a crisis.

Preliminary Policy Recommendations

Considering the significant increase in gender based violence and cases regarding femicide becoming a common occurrence throughout the region of Mexico, there is evident need for policy reform in order to combat such increased levels of crime. A recommendation for policy reform should emphasize prevention efforts through educational means as well as raising awareness through campaigns to promote gender equality and target harmful stereotyping regarding women. In the past, the Mexican government has come close to meeting the demands of activists and international actors that aimed to address the concerns of human rights violations. With the Mexican government becoming an unwilling participant in meeting the needs of victims, organizations have continued to push back in order to demand necessary policy implementations.

When addressing the legal aspects that need to be addressed, there is a need for effective law enforcement to ensure that perpetrators are prosecuted for gender based hate crimes. This

criminalization of femicide would allow for implications of stricter penalties while also ensuring that victims receive justice. Considering that the rates of reported gender based crimes and increased rates of female homicides often are overlooked, it is necessary to increase the levels of data collection as a means to monitor the amount of cases regarding women (Saldana-Perez et al., 2022; 246). This would also mean that there would be a need to create protocols for documentation and reporting while strengthening data collection and data analysis for policy evaluations. Considering that a lot of the current data that has been used to represent the disappearance, abuse, and violence of women and girls in Mexico have come from non governmental sources, the government should implement policy reforms that can accurately represent the severity of crimes. Other aspects of gender-based crime result from intimate partner violence which have long term psychological effects on victims. In the case of acid attacks, the motivation of the crime manifests from partner insecurity and the need for power over another individual. Currently there has been a lack of punishment for criminals that attack women with acid. This can be seen in the case of Carmen Sanches as her former partner was not charged for causing permanent damage to her body. In order to address the issue of acid attacks there is a need to implement harsher punishments. There should be legislation specific towards the criminalization of acid attacks that serves as a separate offense that is distinct from other crimes. It would allow for the establishment of harsher sentencing guidelines to ensure that perpetrators are held accountable.

Other needs for policy reform would include the need for prevention and education. Prevention of gender-based crimes would be implemented through campaigns that would educate individuals within society about the negative consequences that arise from gender-based violence. This would also aim to change attitudes and promote empathy towards victims who

need support. Support systems are a necessary aspect of promoting change since victims are often left with psychological and physical consequences. Victims should be able to receive support from the government. Mental health consequences from gender-based violence can result in the need for specific treatments from psychological, clinical or even medical needs which may be hard to access when people are not given the necessary resources to recover (Barchielli et al., 2022). Such aspects of recovery for victims is necessary for victims since they will have to integrate into society. Mexico's capacity to address the concerns of gender-based violence has lacked effective means of reforming the current legal structure and has failed to meet the needs of its people. It is necessary to enact comprehensive legislation, create support systems, raise awareness, and improve legal responses in order to create a society that is more aware of the consequences of gender-based violence.

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